



**DEPARTMENT OF THE AIR FORCE
UNITED STATES SPACE FORCE
SPACE BASE DELTA 1**

08 May 2026

FROM: 21 CONS/PKA

135 Dover Street, Suite 2225
Peterson SFB, CO 80914

SUBJECT: REQUEST FOR QUOTE (RFQ) – 21 LRFS Fire Bottles Inspections

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR part 12. This announcement constitutes only solicitation. Quotes are being requested, and a written solicitation will not be issued.

The Solicitation number FA251726Q0039 shall be used to reference any written quote provided under this Combined Synopsis/Solicitation.

This solicitation incorporates provisions and clauses by reference. The incorporated provisions and clauses are those in effect through Revolutionary FAR (Federal Acquisition Regulation) Overhaul (RFO), effective 04/29/2026. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

This Combined Synopsis/Solicitation is solicited as a firm fixed priced 100% Small Business Set-Aside purchase order. The North American Industrial Classification System (NAICS) code is *811310 – Commercial and Industrial Machinery and Equipment Repair and Maintenance*. The *size standard is \$12.5 million*.

The quotes will be evaluated IAW FAR 52.212-2, found herein. Please read and comply with all requirements for submitting a quote under the solicitation instructions and the addenda to FAR 52.212-1. Failure to comply with all instructions contained within this synopsis/solicitation could result in the quote being ineligible for award. It is the quoter's responsibility to ensure their quote meets all the requirements identified herein.

The purpose of this Combined Synopsis/Solicitation is for the 21 Logistics Readiness Squadron Flight Line Fire Bottle Inspections on Peterson Space Force Base (SFB), CO.

SEMPER SUPRA

CLIN	Line Item Description	Unit	Quantity	Unit Price	Total
0001	Fire Bottle Annual Inspections (IAW Attachment 1 – PWS)	Job	46		
0002	Fire Bottle Specialized 6-year Inspections (IAW Attachment 1 – PWS)	Job	2		
			Total:		

***FAR Provision 52.212-1, Instructions to Offerors-Commercial Product and Commercial Services (April 2026)** applies to this acquisition and the following addendum applies:

The Following words stating “offer”, “offeror”, and “proposal” are replaced with “quotation”, “vendor”, and “quote”.

Paragraph (a) first sentence revised as follows: “The NAICS code and **small business size** standard for this acquisition appear above.”

Paragraph (c) first sentence revised as follows: “The vendor agrees to hold the prices in its quote firm for **60 calendar days** from the date specified for receipt of quotes, unless another time period is specified in an addendum to the combined synopsis/solicitation.”

The inspection location is at Peterson Space Force Base. The required Period of Performance for this requirement is either 20 May 2026 to 26 May 2026 or before 27 May 2026 after receipt of award for all CLINS in Table 1.

The resulting award will be a Firm-Fixed Priced Purchase Order.

Any **questions** regarding this solicitation shall be submitted to the contracting team **no later than (NLT) 3:00 P.M. Mountain Time (MT) Wednesday, 13 May 2025**. All questions must be submitted to both the Contract Specialist, Payton Wydra at payton.wydra@spaceforce.mil and Contracting Officer, Kristina Worthing, at kristina.worthing@spaceforce.mil. Questions submitted after this deadline may not be answered.

Quotes and contract documentation **shall be provided NLT 1400 (MT), Friday, 15 May 2025** to 21 CONS/PKA. Please submit quotes to both the Contract Specialist, Payton Wydra at payton.wydra@spaceforce.mil and Contracting Officer, Kristina Worthing, at kristina.worthing@spaceforce.mil. Submit no more than 5 pages in response to this request. After 5 pages, the Contracting Officer will not evaluate information. One page is considered to be one side of an 8 ½ x 11 piece of paper in a minimum of 10 font, single spaced. It is the quoter’s responsibility to complete their reps and certs at SAM.gov for the quote to be evaluated for award.

Late submissions:

(a) Vendor are responsible for submitting quotes, and any modifications or withdrawals, so as to reach the Government office designated in the request for quote (RFQ) by the time

specified in the RFQ. If no time is specified in the RFQ, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that quotes are due.

(b) (1) Any quote, modification, or withdrawal received at the Government office designated in the RFQ after the exact time specified for receipt of quote is “late” and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late quote would not unduly delay the acquisition; and—

(i) If it was transmitted through an electronic commerce method authorized by the RFQ, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of quotes; or

(ii) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of quotes and was under the Government's control prior to the time set for receipt of quotes.

(2) However, a late modification of an otherwise successful quote that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(c) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the quote wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(d) If an emergency or unanticipated event interrupts normal Government processes so that quotes cannot be received at the Government office designated for receipt of quotes by the exact time specified in the RFQ and urgent Government requirements preclude amendment of the RFQ, the time specified for receipt of quotes will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(e) Quotes may be withdrawn by written notice received at any time before the exact time set for receipt of quotes. A quote may be withdrawn in person by a quoter or its authorized representative if, before the exact time set for receipt of quotes, the identity of the person requesting withdrawal is established and the person signs a receipt for the quote.

Note: .zip files are not an acceptable format for the Air Force/Space Force Network and will not go through our email system.

Please provide the following information with your quote:

Company Name:

Contact Name:

Address:

Telephone Number:

Unit Price:

SEMPER SUPRA

Extended Price:

Cage Code:

Statement the quote is valid for a minimum of 60 calendar days:

Size of Business/Socio Economic Status:

*Number of Employees _____

*Total Yearly Revenue _____

*Information required determining size of business for the NAICS referenced above

Payment Terms: _____

All companies must be registered in the System for Award Management at <https://www.sam.gov/portal/public/SAM/> to be considered for award. The Government will not provide contract financing for this acquisition.

The contractor's quote/response shall consist of two (2) separate parts:

Part I - Priced Quote

Part II - Technical Documentation

2. Format and Specific Instructions.

1. PART I – PRICED QUOTE

The quoter shall either submit on company letterhead a quote identifying the unit price and total price for all CLINs from Table 1 or fill in Table 1 (see above).

B. PART II – TECHNICAL DOCUMENTATION

Quoter shall submit technical information to confirm the items requested will be provided as stated in this combined synopsis/solicitation (see Table 1).

1. The contractor shall submit documentation of an active National Fire Protection Association (NFPA)10 Certification
2. The contractor shall submit documentation of active license in the State of Colorado.

52.212-2 Evaluation – Commercial Items (April 2026)

This tailored clause takes precedence over the clause incorporated by reference.

The Government will award a firm fixed priced purchase order resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Part I – Priced Quote

Part II - Technical Documentation

Award will be made based on the competitive quote with the lowest evaluated price that meets

SEMPER SUPRA

the technical criteria on an acceptable/unacceptable basis. If any technical criteria are determined to be unacceptable that quote may not be evaluated further and may not be eligible for award.

Addendum to FAR 52.212-2 - Evaluation -- Commercial Items (April 2026).

1. Evaluation:

By submission of its quote, the offeror agrees to all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements. Failure to adhere to all solicitation requirements may result in an offer being determined unacceptable and ineligible for further evaluation. The evaluation process follows:

Part I – Priced Quote Evaluation

Initially, the Government will place all quotes that meet the requirements of the solicitation in order by price, beginning with the lowest evaluated price. The price will be evaluated using a quote identifying the unit price and overall price, for all CLINs identified in Table 1 provided in Addendum to FAR 52.212-1.

The Government will then evaluate the lowest evaluated priced offer to determine if it is reasonable and complete. If there is a conflict between the unit price and the overall price, the unit price will be used to determine the correct evaluated price. Failure to quote for any price element may cause the quoter's quote to be rejected as unacceptable.

Quoters whose evaluated price is unreasonable (in accordance with FAR 13.106-3) may not be considered for award.

Part II – Technical Documentation Evaluation

Next, the lowest evaluated priced offeror will be evaluated on an Acceptable/Unacceptable basis for the Technical Requirement. For the three (3) lowest evaluated priced offerors to receive a rating of "Acceptable", the offeror shall submit technical documentation that confirms their product meets the minimum requirements as stated in this combined synopsis/solicitation (see Table 1). The offeror shall also submit documentation proving that all quoted items for the annual and six-year inspections for 48 fire bottles. Additionally, if an offeror cannot inspect items by the end of the Period of Performance, 20 May 2026 through 26 May 2026, their quote may be found technically unacceptable. If any of the three (3) lowest evaluated priced offeror do not demonstrate all necessary requirements, it will receive an "Unacceptable" rating and evaluation of that quote will stop.

The technical factors will receive one of the following ratings listed below.

Rating Description

Rating	Description
Acceptable	Quote meets the requirements of the solicitation.
Unacceptable	Quote does not meet the requirements of the solicitation.

2. Basis of Award:

SEMPER SUPRA

If the lowest of the three (3) evaluated priced quotes receives an “acceptable” technical rating, that quote represents the most advantageous offer to the Government, evaluation of that quote is complete, and the evaluation process will stop, resulting in an award. If the lowest evaluated price quote receives an “unacceptable” technical rating, evaluation of that quote will stop. In that instance, the next lowest evaluated priced offeror will be evaluated using the methodology above and the process will continue (in order by price) until a quote receives an “acceptable” technical rating, or until all offerors are evaluated.

Conversations conducted to resolve minor or clerical errors will not constitute discussions and the Contracting Officer reserves the right to award a purchase order without the opportunity for a quote revision. The Government intends to award a purchase order without conversations (while keeping with FAR Part 12). However, the Government reserves the right to conduct conversations with one, some, all, or none of the vendors if deemed in its best interest.

In the case that a discrepancy exists, procedures will be executed IAW FAR 52.212-4(r).

List of Attachments

Attachment 1 – LRS Fire Bottle PWS

Attachment 2 - 6 Year Fire Bottle Manual

Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>F87700</u>
Issue By DoDAAC	<u>FA2517</u>
Admin DoDAAC	<u>FA2517</u>
Inspect By DoDAAC	<u>TBD</u>
Ship To Code	<u>TBD</u>
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Special Contract Requirements

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	Feb 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Apr 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.222-42	Statement of Equivalent Rates for Federal Hires.	(May 2014)
-----------	--	------------

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
TBD	TBD
==	==
==	==

==	==
==	==
==	==
==	==

(End of clause)

52.240-91 Security Prohibitions and Exclusions. (Deviation 2026-O0038) (Alternate I)

(Feb 2026)

Alternate I (Feb 2026)

Alternate I (Feb 2026) (Deviation 2026-O0038). As prescribed in 40.205(b), substitute the following paragraph (e)(1) for paragraph (e)(1) of the basic clause:

(e) Governmentwide exclusion and removal orders.

(1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (e)(1). [Contracting Officer must select either "yes" or "no" for each of the following types of FASCSA orders:]

Yes ☐ No ☐ DHS FASCSA Order

Yes ☐ No ☐ DoD FASCSA Order

Yes ☐ No ☐ DNI FASCSA Order

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

[Acquisition.gov](https://www.acquisition.gov)

(End of clause)

Supplemental Clauses Incorporated by Full Text

5352.201-9101 USSF Ombudsman

(Jul 2023)

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, for USSF (United States Space Force) acquisitions (excluding SMC acquisitions) please contact the Director of Contracts, Air Force Installation Contracting Center, Operating Location - Space (AFICC/KS OL-SPC) via the following e-mail workflow address: afica.ks.wf@us.af.mil. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/DRU/SMC ombudsman level, may be brought by the interested party for further consideration to the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(End of clause)

List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	Attachment 2 - 6 Year Fire Bottle Manual	Amerex Fire Manual		08 May 2026	
02	Attachment 1 - PWS LRS Fire Bottles	Performance Work Statement		08 May 2026	

Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation 2026-O0038) (Feb 2026)

Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2026) (Deviation 2026-O0038)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [] is not [] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☒ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.252-1	Solicitation Provisions Incorporated by Reference.	(Feb 1998)
----------	--	------------

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

[Acquisition.gov](https://www.acquisition.gov)

(End of provision)